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**STATE OF NORTH CAROLINA
UTILITIES COMMISSION
RALEIGH**

DOCKET NO. E-2, SUB 1354

BEFORE THE NORTH CAROLINA UTILITIES COMMISSION

In the Matter of
Application of Duke Energy Progress, LLC,)
for Approval of Joint Agency Asset Rider) ORDER
for Recovery of Costs Related to Facilities) DISMISS
Purchased from Joint Power Agency)

BY THE COMMISSION: On November 13, 2025, the Commission issued an Initial Order (Initial Order) Approving Joint Agency Asset Rider, in Part, and Requiring (Initial Order) in the above-captioned docket. In summary, the Initial Order required the recovery of JAAR costs incurred by Duke Energy Progress

On November 20, 2025, the Commission issued an Errata Order (Errata Order) to clarify the allowable recovery amount in the Initial Order (Errata Order).

On November 24, 2025, DEP filed its compliance with the Initial Order (Initial Order) notice, which was approved by Commission order on November 24, 2025 (Initial Order together with Initial Order and Errata Order, JAAR Orders).

On December 12, 2025, DEP filed a motion for extension of time to file notice of appeal and exceptions (Extension Motion) and a proposed extension of time to file notice of appeal and exceptions. Filed with the Extension Motion was DEP's Extension Motion requested that the Commission extend the deadline for filing a notice of appeal and exceptions under N.C. Gen. Stat. § 62-90(a) (Notice Statute), for filing a notice of appeal and exceptions to the Commission's JAAR Orders from December 15, 2025 to January 12, 2026. The Extension Motion was granted by Commission order on December 15, 2025 (Extension Order).

On January 12, 2026, DEP filed a notice of appeal and exceptions (Notice of Appeal and Exceptions) and other things, the Notice cited N.C.G.S. §§ 7A-29(a) and 62-90(a) and the North Carolina Rules of Appellate Procedure. The Notice asserted error on the grounds on which DEP asserted error in the Commission's JAAR Orders.

On January 14, 2026, DEP filed a Supplemental Notice of Appeal and Exceptions further explaining its exceptions to the Commission's JAAR Orders.

¹ North Carolina General Statutes § 62-90 requires that a party file a notice of appeal and exceptions after the entry of the final order or decision, which, in this case fell due on December 15, 2025. Therefore, pursuant to Commission Rule R1-27, the deadline for filing a notice of appeal and exceptions is December 15, 2025.